

K. Rama Devi vs Sri K.Pandu Ranga Reddy on 17 April, 2026

Author: K.Lakshman

Bench: K. Lakshman

IN THE HIGH COURT FOR THE STATE OF TELANGANA
AT HYDERABAD

THE HON'BLE SRI JUSTICE K. LAKSHMAN
AND
THE HON'BLE SRI JUSTICE B.R.MADHUSUDHAN RAO

FAMILY COURT APPEAL No.22 of 2017

DATE OF JUDGMENT: 17.04.2026

Between:

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Appellants.

AND

xxxxxxx

Respondents.

This Court made the following:

JUDGMENT (Per Hon'ble Sri Justice K.Lakshman)

Heard Mr.B.Sandeep Kumar, learned counsel representing Mr.K.Ravikanth, learned counsel for the appellants and Mr.M.Achuta Reddy, learned counsel for respondent No.1. Respondent No.2 is not a necessary party and the said fact was mentioned in the cause title of the appeal itself.

2. This appeal is preferred challenging the order dated 07.04.2015 in F.C.O.P.No.629 of 2009 passed by the learned Judge, Family Court, Hyderabad.

3. Appellants and respondent No.2 have filed the aforesaid F.C.O.P.No.629 of 2009 under Sections 13(1)(ia) and (ib) of the Hindu Marriage Act, 1955 (for short, 'the Act, 1955') seeking divorce dissolving the marriage of appellant No.1 with respondent No.1 performed on 20.11.1981 and also seeking Rs.15.00 Crores towards permanent alimony and costs. Appellants and respondent No.2 have contended that the marriage of appellant No.1 and respondent No.1 was performed on 20.11.1981 at Tirupathi in a Cottage as per Hindu rites and customs in the presence of witnesses, neighbours and friends of respondent No.1. Out of the wedlock, they were blessed with two children i.e., appellant No.2 and respondent No.2 on 02.01.1984 and 01.10.1985 respectively.

4. After the marriage, they put up the family at Domalguda, Hyderabad. The said marriage was taken place without the knowledge of the family members of appellant No.1. However, the said marriage was performed during the life time of Smt.Swarna Latha, sister of appellant No.1 and first wife of respondent No.1 and during the subsistence of the marriage of respondent No.1 with Smt.Swarna Latha.

5. It is further contended that respondent No.1 neglected the appellants and respondent No.2. He is the owner of 500 acres of land and he is earning Rs.1,50,000/- per month towards rents. Even then, he neglected them. Therefore, appellant No.1 was forced to left to Dubai to work as labour. She joined both appellant No.2 and respondent No.2 in a hostel.

6. It is further contended that appellant No.1 has taken the children to Dubai after obtaining 'no objection' from respondent No.1. The said Smt.Swarna Latha died on 12.08.2003. Respondent No.1 deserted appellant No.1. Respondent No.1 ill- treated her and her children, abused them in filthy language and forced them to live separately. Thus, respondent No.1 neglected them and subjected them to cruelty. He deserted appellant No.1. Therefore, appellants and respondent No.2 sought to dissolve the said marriage of respondent No.1 and appellant No.1 performed on 20.11.1981 on the grounds of cruelty and desertion and award an amount of Rs.15.00 Crores towards permanent alimony.

7. Respondent No.1 has filed counter admitting that he married respondent No.1 on 20.11.1981 at Tirupathi in accordance with Hindu rites and customs in the presence of witnesses. In fact, the said marriage is voidable marriage. He never neglected or subjected the appellants and respondent No.2 to cruelty. She filed the aforesaid petition for wrongful gain. Appellants and respondent No.2 filed an application under Section 125 of the Criminal Procedure Code, 1973 seeking maintenance and the same was allowed in respect of appellant No.2 and he has been paying the said amount to appellant No.2.

8. To prove the said cruelty and desertion, appellant No.1 examined herself as PW.1 and she has filed Exs.A.1 to A.13 documents. To disprove the said cruelty and desertion, respondent No.1 examined himself as RW.1. However, he did not exhibit any documents. On consideration of the said evidence, vide the impugned order, learned Family Court dismissed the said application holding that the marriage of appellant No.1 with respondent No.1 was performed during the subsistence of first marriage of respondent No.1 with Smt.Swarna Latha, sister of appellant No.1. Therefore, respondent No.1 has to file an application under Section 11 of the Act, 1955, instead of filing an application under Section 13 of the Act, 1955 to declare the said marriage as void.

9. Whereas, in the present case, appellant No.1 has filed the said petition under Section 13 of the Act, 1955 seeking dissolution of marriage on the grounds of desertion and cruelty. Learned Family Court dismissed the said F.C.O.P. Challenging the said order, appellants preferred the present appeal.

10. Learned counsel for the appellants would contend that the learned Family Court did not consider the contents of the application filed by the appellants and respondent No.2. Respondent No.1 admitted the marriage. Learned Family Court dismissed the aforesaid F.C.O.P. on technicalities.

Sister of appellant No.1, namely, Smt.Swarna Latha died on 12.08.2003. Even then, learned Family Court dismissed the aforesaid application. Though respondent No.1 filed counter and also chief-affidavit, he did not enter into the witness box. Therefore, his version cannot be believed. Appellant No.1 is also entitled for maintenance. Learned counsel placed reliance on the principles laid down by the Apex Court and this Court in Sukhdev v. Sukhbir Kaur 1, Vidhyadhar v. Manikrao and another 2, Iswar Bhai C.Patel @ Bachu Bhai Patel v. Harihar Behera and another 3 and Shaik Mahammed Rafi v. Grandhi Poorna Seetha Manoja 4.

11. Learned counsel for respondent No.1 would contend that the marriage between appellant No.1 and respondent No.1 is void and the said fact is specifically pleaded by respondent No.1 before the learned Family Court. On consideration of the said aspect only, learned Family Court dismissed the aforesaid F.C.O.P. There is no error in it.

12. The aforesaid facts would reveal that the marriage of appellant No.1 and respondent No.1 was performed on 20.11.1981 at Tirupathi during the subsistence of the first marriage of respondent No.1 with Smt.Swarna Latha, sister of appellant No.1. The said fact is not in dispute. Therefore, the 2025 INSC 197 (1993) 3 Supreme Court Cases 573 (1993) 3 Supreme Court Cases 457 216 (6) ALD 520 (DB) marriage between appellant No.1 and respondent No.1 is not valid in terms of Section 5(i) of the Act, 1955.

13. Section 5 of the Hindu Marriage Act, 1955 deals with the conditions for a Hindu Marriage and it is relevant and the same is extracted below:

"5. Conditions for a Hindu marriage -A marriage may be solemnized between any two Hindus, if the following conditions are fulfilled, namely:--

(i) neither party has a spouse living at the time of the marriage;

(ii) at the time of the marriage, neither party--

(a) is incapable of giving a valid consent to it in consequence of unsoundness of mind; or

(b) though capable of giving a valid consent, has been suffering from mental disorder of such a kind or to such an extent as to be unfit for marriage and the procreation of children; or

(c) has been subject to recurrent attacks of insanity ***;

(iii) the bridegroom has completed the age of twenty-one years and the bride, the age of eighteen years at the time of the marriage;

(iv) the parties are not within the degrees of prohibited relationship unless the custom or usage governing each of them permits of a marriage between the two;

(v) the parties are not sapindas of each other, unless the custom or usage governing each of them permits of a marriage between the two; ***"

14. Section 11 of the Hindu Marriage Act, 1955 deals with void marriages and it is relevant and the same is extracted below:

"11.Void marriages - Any marriage solemnised after the commencement of this Act shall be null and void and may, on a petition presented by either party thereto against the other party, be so declared by a decree of nullity if it contravenes any one of the conditions specified in clauses

(i), (iv) and (v) of section 5."

15. Therefore, appellant No.1 instead of filing an application under Section 11 of the Hindu Marriage Act, 1955 to declare the marriage as void, she has filed the aforesaid application under Section 13 (1) (ia) and (ib) of the Act, 1955 seeking dissolution of marriage on the grounds of cruelty and desertion. Thus, the marriage of appellant No.1 with respondent No.1 is in violation of Section 5(i) of the Act, 1955.

16. We have perused the record.

17. Perusal of record would reveal that respondent No.1 has filed counter admitting the marriage and he has specifically pleaded that marriage is voidable. Respondent No.1 has filed his chief-examination affidavit, but he did not enter into the witness box. He was set ex parte on 21.02.2013 before the learned Family Court. Even then, in the appendix of evidence, learned Family Court mentioned the name of respondent No.1 as RW.1.

18. In Sukhdev (cited supra), Three Judges Bench of the Apex Court held that a spouse whose marriage has been declared void under Section 11 of the Act, 1955 is entitled to seek permanent alimony or maintenance from the other spouse by invoking Section 25 of the Act, 1955.

19. As discussed supra, in present case, appellant No.1 has sought divorce on the ground of cruelty and desertion. The facts are different in the present case. Therefore, the aforesaid case law has no application to the facts of the present case.

20. Perusal of record would reveal that appellant No.2 and respondent No.2 are the children of appellant No.1 and respondent No.1 and they have filed a suit in O.S.No.249 of 2011 against respondent No.1 seeking partition and separate possession of the suit schedule property and the said suit is pending on the file of the learned District Judge, Rangareddy District. It is for the said Court to consider and decide the said suit on merits. Further, appellant No.2 and respondent No.2 can also seek benefit under Section 16 of the Act, 1955.

21. However, learned Family Court dismissed the aforesaid F.C.O.P. filed by the appellants and respondent No.2. Appellants herein failed to make out any case to interfere with the impugned

order.

22. In the light of the aforesaid discussion, this appeal is liable to be dismissed and accordingly, the same is dismissed. However, liberty is granted to appellant No.1 to avail appropriate remedies available under law.

Miscellaneous applications pending, if any, shall stand closed. There shall be no order as to costs.

_____ K. LAKSHMAN, J _____
B.R.MADHUSUDHAN RAO, J 17th April, 2026.

YNK